

9.0 Program Compliance

Effective Date 02/06/2026

9.01C Verbal and Physical Abuse by Clients

PURPOSE: To provide direction on how to effectively handle situations when an applicant, client, parent/caregiver, proxy, or other representatives' behavior is disruptive to daily clinic operations.

DEFINITIONS:

Harassment means conduct directed toward a victim that includes, but is not limited to, consistent, unwanted or offensive contact that creates a hostile or intimidating environment.

Physical abuse means intentionally causing harm to a person.

Verbal abuse means hurtful or derogatory language directed towards another person, which can include criticizing, insulting, or denouncing someone else.

Verbal threat means to threaten or intimidate any person.

For a complete list refer to Exhibit 9.01A Definitions.

A. Policy

1. The Michigan WIC Program strictly prohibits the following actions by any applicant, client, parent/caregiver, proxy, or other representative:
 - a. Verbal abuse.
 - b. Harassment.
 - c. Threatening or causing physical abuse.
 - d. Damaging WIC property.
2. All WIC agencies must have internal policies and procedures involving safety and security which follow [OSHA Regulations](#). (These policies and procedures may be adopted at the organization's administration level.)
3. In the event an applicant, client, parent/caregiver, proxy, or other representative verbally abuses staff or others including but not limited to at the clinic, on the phone or any form of social media, the staff must:
 - a. Refer to your organization's internal policies and procedures involving safety/security.
 - b. Provide a compliance letter with each incident of verbal abuse as required below:

- i. **First** incident, the client will be verbally warned and provided a written warning reminding the client they signed the Client Agreement agreeing to treating WIC staff, client, vendor, or any WIC representative with courtesy and respect. (See Policies, 2.18 Notification of Client Rights and Responsibilities, 2.18A WIC Client Agreement.)
 - ii. **Second** incident, a final warning will be provided notifying the client they may be disqualified if it occurs one more time.
 - iii. **Third** incident, the client will be sanctioned for 12 months and provided a sanction letter notifying them of this disqualification. The client may reapply for the program at the end of the disqualification period. There are exceptions that allow a client to reapply sooner. (See Policy 9.01 Client Compliance.)
4. In the event an applicant, client, parent/caregiver, proxy, or other representative, harasses WIC staff or other person including but not limited to at the clinic, on the phone or any form of social media, refer to your organization's policies and procedures for handling these types of incidents. The local agency must follow the following steps when an incident of harassment occurs:
 - a. **First incident**, provide a written warning stating they may be disqualified if it occurs one more time.
 - b. **Second incident**, provide a sanction letter notifying them they are disqualified for 12 months. The client may reapply for the program at the end of the disqualification period. There are exceptions that allow a client to reapply sooner. (See Policy 9.01 Client Compliance.)
5. In the event an applicant, client, parent/caregiver, proxy, or other representative, threatens to or physically harms a person(s), law enforcement must be called immediately, and the client is disqualified permanently. There may be an exception to allow for a proxy if there are children involved at the discretion of the State agency.
6. In the event an applicant, client, parent/caregiver, proxy, or other representative, damages WIC property they must be disqualified for 12 months, and law enforcement may be notified. If the local agency is unsure about notifying law enforcement contact their administration or State WIC office for further guidance. The client may reapply for the program at the end of the disqualification period. There are exceptions that allow a client to reapply sooner. (See Policy 9.01 Client Compliance.)
7. Refer to Policy 9.01 Client Compliance and Exhibit 9.01B Violation Types/Sanctions for proxy procedures on processing sanctions.

8. All incidents must be entered as a complaint in the electronic record (MIWIC) within 24 hours of the incident by the local agency coordinator or designee including but not limited to the following:
 - a. Client's information.
 - b. Description of the incident.
 - c. Statements from personnel involved.
 - d. Rationale of actions taken by Local Agency Coordinator.
 - e. Copy of police report, if available.
 - f. All documentation related to the incident must be scanned into the client record.
9. All incidents, including all warnings and sanctions, must be reported immediately to the State agency by sending an email to the MDHHS-WICProgramintegrity@michigan.gov. Call the State office for any urgent matters: **Phone: (517) 335-8951 or Toll Free: 1(800) 942-1636**
10. The use and disclosure of confidential applicant and client information must be restricted to people directly connected with the administration or enforcement of the WIC Program at the local, state or federal level who have a need to know the information for WIC Program purposes. (See Policy 1.03 Confidentiality.)
11. Any applicant, client, parent/caregiver, proxy, or other representative sanctioned under this policy must have every right to appeal. (See Policy 1.04 Fair Hearing.)

References:

7 CFR 246.7 (j), 246.12 (u)(1-5)

Cross References:

1.03 Confidentiality
1.04 Fair Hearing
2.18 Notification of Client Rights and Responsibilities
2.18A Client Agreement
9.01 Client Compliance

Exhibits:

9.01A Definitions
9.01B Violation Types/Sanctions